

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 721

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO THE IDAHO BUILDING CODE ACT; AMENDING SECTION 39-4113, IDAHO CODE, TO REVISE PROVISIONS REGARDING PUBLIC SCHOOL BUILDING PLANS AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 39-8007, IDAHO CODE, TO PROVIDE A CORRECT CODE REFERENCE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 39-4113, Idaho Code, be, and the same is hereby amended to read as follows:

39-4113. PLAN REVIEWS -- MAXIMUM FEES AND SCHOOL INSPECTIONS. (1) The administrator shall establish a program for plan reviews and permit issuance entirely within the division of occupational and professional licenses. Plan reviews shall be for the provisions of this chapter and chapter 10, title 54, Idaho Code, chapter 26, title 54, Idaho Code, chapter 50, title 54, Idaho Code, and chapter 86, title 39, Idaho Code, pertaining to construction, alteration or repair of buildings or structures within the scope of the division's jurisdiction pursuant to this chapter. Plans for schools reviewed by the division shall not include a review for compliance with the provisions of chapter 2, title 41, Idaho Code, or for local planning and zoning requirements.

(2) The local government or division performing a building plan review for public works, as defined in section 67-5710B, Idaho Code, shall complete the initial plan review within thirty (30) calendar days of submission of such plan.

~~(2)~~ (3) Plan review fees shall be established by rules promulgated by the board. Local governments elected by school districts to perform building plan reviews for public schools as provided for in this section shall not charge a fee for such review of building plans in excess of what the division has established by rule for building plan review services for public schools.

~~(3)~~ (4) Each manufacturer of commercial coaches and modular buildings shall submit the building plans for every model of such structure to the administrator for the purpose of review.

~~(4)(a)~~ (5) (a) Public school building plans shall be approved by either the local government or the division of occupational and professional licenses, whichever the school district elects. Any city or county that has adopted by ordinance all the applicable codes pursuant to section 39-4109, Idaho Code, and the codes as permitted in chapter 10, title 54, Idaho Code, chapter 26, title 54, Idaho Code, and chapter 50, title 54, Idaho Code, shall be eligible to perform school plan reviews only if the following additional requirements are met: plans examiners performing building and energy code plan reviews shall hold current certification

1 as a commercial building plans examiner by the International Code Council;
2 examiners performing plumbing code plan reviews shall hold current
3 certification as a plumbing inspector by the international association
4 of plumbing and mechanical officials and shall be a licensed Idaho
5 journeyman plumber; examiners performing electrical code plan reviews
6 shall hold current certification as an electrical inspector by the
7 national certification program for construction code inspectors and
8 shall be a licensed Idaho journeyman electrician; and examiners performing
9 mechanical code plan reviews shall hold current certification
10 as a commercial mechanical inspector by the International Code Council.

11 (b) All plans examiners who perform public school plan reviews shall be
12 either an employee of the division, an employee of the local jurisdiction
13 in which the school is to be constructed, or performing plan reviews
14 under an interagency contract between local jurisdictions, and
15 shall meet the eligibility requirements as provided in paragraph (a) of
16 this subsection.

17 (c) An eligible local government may contract with the division for review
18 of any portion of the plans for which the local government does not
19 have a properly certified plans examiner. A county may be deemed eligible
20 to perform plan review services only for those types of installations
21 for which they have authority pursuant to this chapter and chapter
22 50, title 54, Idaho Code, to adopt an enforcement program. Where
23 an eligible county performs the plan review services, the electrical
24 and plumbing code plan reviews shall be performed by the division at the
25 hourly rate as established in rule by the division. Any local government
26 elected to perform plan review services for public schools shall
27 provide the division a copy of all approved plans.

28 (d) Wherein the proposed work is valued in excess of one hundred thousand
29 dollars (\$100,000), a school district may elect to utilize the
30 school plan review services available from an eligible local government
31 building code enforcement jurisdiction or from the division. Wherein
32 the proposed work is valued at one hundred thousand dollars (\$100,000)
33 or less, a school district may elect to use a local government without
34 regard to the eligibility requirements in paragraph (a) of this subsection.
35 Election by a school district shall be made by submitting a
36 written certification to both the division and the involved local government.
37

38 (e) Public school plan review services provided by either the division
39 or an eligible local jurisdiction pursuant to this section shall
40 include a review of the following disciplines: building (structural
41 and nonstructural), mechanical, fuel gas, plumbing, electrical, accessibility,
42 elevators, boilers, and energy conservation. At a minimum,
43 plan review services shall include:

44 (i) A technical examination of all drawings and construction documents;
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46 (ii) The approval of such drawings and construction documents
47 by determining whether such are in accord with the codes adopted
48 pursuant to sections 39-4109, 54-1001, 54-2601 and 54-5001, Idaho
49 Code;

(iii) A determination that the drawings and construction documents are in compliance, or noncompliance, with the applicable codes, code interpretation, and the identification of approved modifications or alternative materials, design or methods; and

(iv) The identification of the reviewing official(s), the date upon which plans are approved, and a stamp or some other similar mark on the plans evidencing approval.

(f) If a school district elects to utilize the plan review services of the division, it shall submit to the division of occupational and professional licenses three (3) sets of working drawings and specifications for new public school buildings or facilities and additions or alterations to existing facilities. The division will review the plans submitted to it pursuant to this section for compliance with the current editions of the codes specified in this chapter or within rules promulgated pursuant to this chapter by the board and by section 39-8006, Idaho Code.

~~(5)~~ (6) Public school building plans ~~must~~ shall be approved by either the local government or the division ~~before the school district may advertise for bids. The jurisdiction performing the public school building plan review shall complete the initial plan review within thirty (30) calendar days of submission of such plan.~~ Once plans are reviewed and approved pursuant to this section, no material change ~~can~~ shall be made to such plans without review and approval of such change by the jurisdiction performing the plan review. All school construction or remodeling governed by this chapter shall be inspected by building inspectors certified in accordance with section 39-4108, Idaho Code, or by Idaho-licensed architects or engineers to determine compliance with this chapter and the Idaho uniform school building safety act, chapter 80, title 39, Idaho Code. Nothing in this section shall limit the authority of local governments to issue building permits, perform fire code or other zoning and land use-related plan reviews or provide a full range of building code enforcement activities as they relate to inspections of school buildings or facilities sited within their jurisdiction regardless of the election exercised by the school district pursuant to this section.

SECTION 2. That Section 39-8007, Idaho Code, be, and the same is hereby amended to read as follows:

39-8007. POWERS AND DUTIES OF THE ADMINISTRATOR. (1) The administrator shall enforce the provisions of this chapter in cooperation with the superintendent of public instruction and the building code advisory board.

(2) The administrator shall promulgate rules necessary to carry out the provisions of this chapter. Such rules shall be promulgated pursuant to the provisions of chapter 52, title 67, Idaho Code.

(3) The administrator shall establish a program for the timely review of public school construction plans as required by section 39-4113(4) ~~(f)~~ (5) (f), Idaho Code.

(4) Upon request, the administrator shall provide training to school districts on the Idaho uniform school building safety code.

1 SECTION 3. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 July 1, 2026.